

fence is committed, still, that objection does not apply to a doctrine which goes only to support actions in favor of those who suffer an inconvenience like that complained of, particular to themselves, and not common to the public. So far, the nuisance becomes *private*; and the offender ought not to be permitted to escape from the general rule, which requires that those who illegally damage others, should make compensation therefor, by alleging that he has not only injured the other party in the manner complained of, but has, also, injured him, and every other member of the community, by the commission of a public offence.

I have the honor to be, with respect,

Your excellency's obedient servant,

SAMUEL A. TALCOTT.

His excellency,

DE WITT CLINTON, Governor, &c.

AUDITOR GENERAL'S OFFICE,

Dec. 3, 1821.

SIR,

In compliance with your communication, which I had the honor of receiving on the 30th ultimo, calling upon me for information respecting the state of the finances of the Commonwealth, during the current year, I have prepared, from official documents, a statement of the receipts and expenditures, from the 1st day of December, 1820, to the 30th November, 1821, (both days inclusive) of which the following is an abstract, viz:

RECEIPTS.

Bank loan, per act of 28th March, 1820,	\$100,000 00
Stock loan, per act of 2d April, 1821, reimbursable in twenty years.	1,000,000 00
Lands and land office fees,	31,689 42
Auction duties,	58,777 93
Tavern licences,	36,601 51½
Tax on offices,	12,610 48
Fees of the secretary of state's office,	2,595 85
Dividends on bank stock,	116,056 00
Ditto on turnpike and bridge stock,	6,800 00
Tax on banks,	22,294 51
Auction commissions,	18,400 00
Duties on retailers of foreign merchandize,	2,572 64
Militia fines,	2,932 29
Exempt fines,	4,446 68
Court fines,	432 08
Old debts,	2,463 12
Miscellaneous,	2,113 94
	\$1,420,586 40½

Balance in the treasury on the 1st Decem-
ber, 1820. - -

27,369 90

 1,447,956 30½

EXPENDITURES.

Improvements,	-	-	\$577,259 29
Expenses of government, ordinary and con- tingent,	-	-	168,096 26½
Militia expenses,	-	-	17,747 52½
Removal of convicts,	-	-	5,049 07
Pensions,	-	-	18,491 33
Pennsylvania claimants,	-	-	9,545 04
State capitol,	-	-	46,000 00
Deaf and dumb institution,	-	-	9,680 00
Education,	-	-	11,000 00
Penitentiary near Pittsburg,	-	-	18,34 40
Penitentiary at Philadelphia,	-	-	21,000 00
Inspectors of the new prison,	-	-	6,506 82
Interest on loans,	-	-	36,158 31
Expenses consequent on the late war,	-	-	675 93
Miscellaneous,	-	-	8,352 90

 954,306 88

Balance in the treasury on the 1st Dec. 1821,

493,649 42½

 1,447,956 30½

On examining this statement, and comparing it with the estimate of the late Auditor General, made during the last session of the Legislature, you will perceive that, while the receipts from the different branches of revenue have been augmented, the expenditures of public money have decreased.—On further examination it will also appear, that the difference in the amount of revenue, between this and the preceding year will exceed forty-five thousand dollars: and, unless it should experience a diminution arising from causes not anticipated, during the ensuing year, the revenue for 1822, may be expected to improve still more, and the amount of difference, compared with that of 1820, be calculated at \$ 75,000.

In this place it may be proper to observe, that I have not brought into the foregoing account the money due the state by the United States, on claims arising for militia expenditures during the late war, and the western expedition of 1794, from which source the Commonwealth will be entitled to a considerable balance, when these accounts are settled on just and liberal principles.—A settlement in part, subject to future revision, was effectuated at this department during the last sum-